

SERVICE AGREEMENT

BETWEEN

HEIRS TECHNOLOGIES LIMITED

AND

UNITED BANK OF AFRICA PLC.

PREPARED BY



BANWO & IGHODALO

Email: banwigho@banwo-ighodalo.com

Website: www.banwo-ighodalo.com

TABLE OF CONTENTS

1. DEFINITIONS AND INTERPRETATION	3
2. TERM	6
3. SCOPE OF AGREEMENT AND DELIVERABLES	6
4. PAYMENT TERMS	6
5. ADDITIONAL SERVICES AND FEES	7
6. REPRESENTATIONS AND WARRANTIES	7
7. INTELLECTUAL PROPERTY	9
8. INDEMNITIES	9
9. CONFIDENTIALITY	10
10. FORCE MAJUERE	11
11. TERMINATION	11
12. CYBER RISK AND SECURITY INCIDENTS	12
13. DATA PROTECTION	14
14. ASSIGNMENT	14
15. NOTICE	15
16. GOVERNING LAW	15
17. DISPUTE RESOLUTION	15
18. MISCELLANEOUS	16
SCHEDULE 1	19
SCOPE OF WORK (8 weeks)	19
SCHEDULE 2	21
PAYMENT TERMS	21

THIS SERVICE AGREEMENT is made the ____ day of _____ 2025

BETWEEN

Heirs Technologies Limited, a private company limited by shares duly incorporated under the laws of the Federal Republic of Nigeria with registration number 510211 and having its registered office address at 220B Ikorodu Road, Palmgrove, Lagos State, Nigeria (hereinafter referred to as “**Heirs Tech or the Service Provider**”, which expression shall, where the context so admits, include its successors-in-title, nominees and permitted assigns) of the first part;

AND

UNITED BANK OF AFRICA PLC, a public company limited by shares incorporated under the Laws of the Federation of Nigeria, with registration number RC and having its principal place of business at UBA House, 57, Marina Street, Lagos Island, Lagos State, Nigeria (hereinafter referred to as “**UBA or the Bank**” which expression shall where the context so admits include its successors-in-title, agents and assigns) of the one part.

In this Agreement, Heirs Tech and UBA are hereinafter referred to individually as a “**Party**” and collectively as “**Parties.**”

WHEREAS:

- (a) Heirs Tech is a private company that offers technology-driven solutions to enhance business processes, drive innovation, and improve service delivery across Africa.
- (b) UBA is an International Bank that provides financial services.
- (c) The Bank desires to optimize its technology costs, improve operational efficiency, and achieve sustainable savings in its IT spend categories including software licensing, infrastructure maintenance, vendor contracts, and other technology-related expenses. (“Services”).
- (d) Heirs Tech possesses expertise in technology cost optimization, including assessment, roadmap development, and implementation of cost-saving measures.
- (e) UBA wishes to engage Heirs Tech to provide such services, and Heirs Tech has agreed to provide the services on the terms and conditions set out in this Agreement.

NOW IT IS HEREBY AGREED AS FOLLOWS:

1. DEFINITIONS AND INTERPRETATION

1.1. Definitions

In this Agreement, unless the context otherwise requires, the following expressions shall have the following meanings:

“**Applicable Laws**” shall mean any applicable constitution, treaty, statute, rule, regulation, ordinance, order, directive, code, interpretation, judgment, decree, injunction, writ, determination, award, permit, license, authorization, directive, requirement or decision for agreement with or by Government Authorities.

“Business Days” means a day other than a Saturday, Sunday, or public holiday on which banks are normally open for businesses in Nigeria.

“Confidential Information” means information relating to the businesses, products and affairs of a Party, its affiliates and its customers which is confidential or proprietary in nature (regardless of whether such information is marked as confidential), including, but not limited to, information about or relating to: the identity, business and needs of the Party’s customers; the identity of and plans for the development of new customers; the business and pricing policies and practices of the Party; the financial condition and affairs of the Party; the Party’s business development activities and plans for its existing and prospective lines of business, products and services; the identity of and nature and terms of the Party’s business relations with vendors, lenders, independent contractors and employees; and the Party’s artwork, designs, prototypes, inventions, computer software and databases, systems, methods, programming materials, processes, new and developing products and services and marketing concepts; copyright, trademarks, designs, trade secret, know-how, processes and procedures and all other types and/or varieties of intellectual property held, owned or otherwise exploited by the Party; or any other confidential or secret information concerning the business and affairs of the Party.

“Control” means

- (a) the power (whether directly or indirectly by way of ownership of shares, proxy, contract, agency or otherwise) to:
 - (i) cast, or control the casting of, more than one-half of the maximum number of votes that might be cast at a general meeting of a person or entity; or
 - (ii) appoint or remove all, or the majority, of the directors, trustees or other equivalent officers of a person or entity; or
 - (iii) give directions with respect to the operating and financial policies of a person or entity which the directors, trustees, or other equivalent officers of that person or entity are obliged to comply with; or
 - (iv) in any other way, control the affairs of such person or entity;
- (b) the holding of more than one-half of the issued share capital or other ownership interest of a person or entity (excluding any part of that issued share capital or other ownership interest that carries no right to vote),

“Controls” and **“Controlled”** shall have a corresponding meaning.

“Effective Date” means the November 1, 2025

“Force Majeure” includes but is not limited to hostilities, revolution, civil commotion, strike or labour disturbances; epidemic; pandemic; fire, lightening, flood, storm or earthquake; explosion or blow-out; blockade or embargo; supervening applicable law or any other act of government; act of God; cyber attacks, security incidents, telecommunications or internet failures, or other technology infrastructure disruptions; or any other cause, whether of the same or different nature, that is beyond the control and without the fault or negligence of the Party asserting the benefit of the Force Majeure and which makes the performance, by that Party, of its obligation under this Agreement impossible or impractical.

“Government Authority” means any government, any governmental entity, department, commission, board, agency or instrumentality, and any court, tribunal or judicial or arbitral body, whether federal, state, local or foreign.

“Intellectual Property” means inventions, discoveries, developments, methods, processes, compositions, works, concepts and ideas (whether or not patentable or copyrightable or constituting trade secrets) conceived, made, created, developed or reduced to practice by a Party.

“Intellectual Property Right” means any rights, titles and interests (under any jurisdiction, whether protectable or not, and whether registered or unregistered) in and to any inventions, discoveries or works of authorship, domain names, as well as related applications and goodwill.

“Initial Term” shall mean 8 weeks from the Effective Date of this Agreement.

“Person” shall mean any natural person, corporation, organization, general partnership, limited partnership, limited liability company, joint venture, trust, business trust, association, governmental entity, or other legal entity.

“Services” means the provision of technology cost optimisation, advisory, and implementation support services to be provided by the Service Provider under this Agreement, as more fully described in Schedule 1 of this Agreement and as amended by the Parties in writing from time to time;

“Service Fee” means the amounts payable by UBA to Heirs Tech for the provision of the Services as set forth in Schedule 2, which shall be due and payable within thirty (30) days of invoice delivery by Heirs Tech; and

For the purpose of this Agreement, except as otherwise expressly provided or unless the context otherwise requires:

- 1.1.1. **references** to any **“Party”** or any other person shall be construed to include its successors in title, permitted assigns, and permitted transferees;
- 1.1.2. references to **“law”** or any statute includes any legislation, any common or customary law, constitution, decree, judgment, order, ordinance, treaty, or other legislative measure in Nigeria which is from time to time in force;
- 1.1.3. references to **“assets”** includes present and future properties, revenues, and rights of every description;
- 1.1.4. references to a **“regulation”** includes any regulation, rule, circular, official directive, request, or guideline (whether or not having the force of law) of any governmental, intergovernmental or supranational body, agency, department or of any regulatory, self-regulatory or other authority or organisation;
- 1.1.5. words importing any gender shall include any of the other genders, and words importing the singular shall include the plural, and vice versa;
- 1.1.6. the clause and schedule are integral parts of this Agreement and shall be taken into account in its interpretation;
- 1.1.7. paragraph headings in this Agreement have been inserted for convenience;

- 1.1.8. the term “Person” includes a natural person, corporate or unincorporated body (whether or not having separate legal personality), and where applicable, that person’s legal and personal representatives, successors, and permitted assigns;
- 1.1.9. any obligation in this Agreement on a person not to do something includes an obligation not to agree or allow that thing to be done;
- 1.1.10. references to costs, charges, expenses or remuneration shall be deemed to include, in addition, references to any value added tax or similar Tax charged or chargeable in respect thereof;
- 1.1.11. writing shall include typewriting, printing, lithography, photography, telex, facsimile, and the printed-out version of any communication by electronic mail and other modes of representing or reproducing words in a legible form;
- 1.1.12. if a period of time is specified as from or of a given day or from or of the day of an act or event, it shall be calculated exclusive of that day;
- 1.1.13. a reference to a month shall be a reference to a calendar month; and
- 1.1.14. the expressions “**hereunder**”, “**hereto**”, “**herein**”, “**hereof**”, and similar expressions relate to this entire Agreement and not to any particular provision thereof.

2. TERM

- 2.1 This Agreement shall commence on the Commencement Date and shall continue in full force and effect until the expiration of the initial term. The duration of this Agreement shall only be extended if the Services are not completed within the initial term subject to the written consent of both Parties, with revised timelines to be agreed upon by the Parties in good faith.

3. SCOPE OF AGREEMENT AND DELIVERABLES

- 3.1 The Service Provider shall provide technology cost optimization, advisory, and implementation support services to the Client. These services shall include, without limitation, the review and analysis of technology costs, identification of optimization opportunities, development of a cost optimization roadmap, support with implementation of agreed measures as outlined schedule 1 of this agreement, and provision of progress reporting (the “**Services**”).
- 3.2 The specific reports, frameworks, and other outputs to be delivered in the course of providing the Services (the “**Deliverables**”) shall be as outlined in Schedule 1 of this Agreement, as may be amended by mutual written agreement of the Parties.

4. PAYMENT TERMS

- 4.1 In consideration of the provision of the Services by Heirs Tech, and Heirs Tech fulfilling its obligations under this Agreement, UBA shall pay to Heirs Tech the Service Fee as detailed in Schedule 2 of this Agreement. The Service Fee shall be subject of all applicable statutory fees, including taxes, levies, and any other charges imposed by relevant authorities.
- 4.2 The payment of the Service Fee shall be made within 30 calendar days after the receipt of a payment invoice prepared by Heirs Tech .

- 4.3 In the event of UBA disputing in good faith any item appearing on an invoice it shall, within a period of not more than ten (10) calendar days from the receipt of the invoice deliver a notice in writing to Heirs Tech setting out the details of such dispute and Heirs Tech shall, within seven (7) calendar days of receipt of the notice of dispute, furnish UBA with those documents and other materials that are reasonably required to verify the disputed amount. UBA shall pay the undisputed amount and may only withhold the disputed amount of the invoice, pending resolution of the dispute which must be resolved within 30 days, after which the disputed amount becomes due and payable. UBA shall not be deemed to be in breach of its payment obligations hereunder only if it complies with these terms.
- 4.4 Where, under the provisions of any laws, regulations, or directives for the time being in force in Nigeria, UBA is required to deduct any amount, whether as tax or howsoever called, from the Service Fee or any amount payable to Heirs Tech under this Agreement, UBA shall without further assurance to Heirs Tech deduct the specified amount or rate from such Service Fee or payment and pay over or deal with any amount so deducted in accordance with the provisions of the relevant laws or regulations providing for the deductions. UBA shall notify Heirs Tech of the details of such deduction within three (3) Business Days of the remittance of such deduction to the relevant tax authority to enable Heirs Tech to access his Withholding tax credit notes.
- 4.5 Where Heirs Tech claims to be exempted from any statutory deductions, it shall inform UBA and provide any necessary documentation to support its case, including a certificate of exemption from the relevant authority. UBA may act on the information given at its discretion and shall not be liable to Heirs Tech or any other person or body in the event that UBA applies the statutory deduction according to the relevant laws or regulations

5. ADDITIONAL SERVICES AND FEES

Any services or work requested by either Party that fall outside the scope of the agreed services as specified in this Agreement shall require prior written agreement between the Parties. Such additional services will be subject to negotiation, and a separate fee will be established in writing before the commencement of any work related to those services.

6. REPRESENTATIONS AND WARRANTIES

- 6.1 Each Party represents and warrants to the other that:
- 6.1.1 it is a duly formed and validly existing entity under the laws of its place of incorporation with full power and authority to enter into this Agreement;
- 6.1.2 the execution, delivery, and performance of this Agreement has been duly authorized and:
- (a) does not require the consent of any third party;
 - (b) does not conflict in any material respect with, result in a material breach of, or constitute a material default under, its organizational documents or any other material contract or agreement to which it is a party or by which it may be bound or affected; and
 - (c) does not violate in any material respect any provision of Applicable Law or any order, injunction, judgment or decree of any Government Authority by which it may be bound, or require any regulatory filings or other actions to comply with the requirements of Applicable Law.

- 6.1.3 It is not a party to, nor is it bound by, any agreement or commitment that prohibits the execution and delivery of this Agreement or the performance of the terms contemplated hereby.
- 6.1.4 No insolvency proceedings of any character, including bankruptcy, receivership, reorganization, composition or arrangement with creditors, voluntary or involuntary, affecting it are pending or threatened, and it has not made any assignment for the benefit of creditors or taken any action in contemplation of, or which would constitute the basis for, the institution of such insolvency proceedings.
- 6.1.5 There is no action, suit, proceeding or investigation pending or threatened against it which questions the validity of this Agreement or the agreements contemplated hereby, or its ability to perform the terms contemplated hereby or thereby.
- 6.1.6 It is not in conflict with, or in default, breach or violation of (i) any law applicable to it (including without limitation, (a) any laws applicable to its business, (b) any tax laws, and (c) any laws related to the protection of personal data or by which any of its share, security, equity interest, property or asset is bound or affected, or (ii) any contract, permit or obligation to which it is a party or by which it or any of its share, security, equity interest, property or asset is bound.
- 6.1.7 Neither Party nor any of its personnel:
- (a) has directly or indirectly, taken any action that would cause it to violate anticorruption or anti-bribery Laws applicable to it ("**Anticorruption Laws**");
 - (b) has taken any act in furtherance of an offer, payment, promise to pay, authorization, or ratification of the payment, directly or indirectly, of any gift, money or anything of value to a government official to secure any improper advantage (e.g., to obtain a tax rate lower than allowed by law) or to obtain or retain business for any Person in violation of applicable law.
 - (c) is under investigation or has been requested to provide information to any governmental authority regarding the Anticorruption Laws, and (ii) there is no other allegation, investigation or inquiry by any governmental entity regarding its actual or possible violation of the Anticorruption Laws.
- 6.2 Each Party warrants, represents, and acknowledges that:
- 6.2.1 All information supplied to other Party, to the best of disclosing Party's knowledge, is truthful and accurate.
- 6.2.2 it possesses the expertise and the sufficient number of skilled personnel necessary to perform the its obligations in accordance with the terms of this Agreement.
- 6.2.3 it will, and will ensure that its personnel perform its obligations hereunder in compliance with any and all applicable laws, regulations, standards, rules, and all relevant internal policies and procedures of other Party.
- 6.3 Heirs Tech warranties that

- 6.3.1 it is competent to render the Services as set out in this Agreement and that it possesses the requisite level of skill and expertise commensurate with that experience which it will make available to the Client;
- 6.3.2 Throughout the term of this Agreement, it shall diligently and thoroughly provide the services in accordance in a workmanlike manner with reasonable care and skill, in accordance with industry best practices and in accordance with the recognized professional.
- 6.3.3 It is the owner of all intellectual property rights embedded within it or otherwise possesses all necessary licenses and permissions to provide the services as specified in this Agreement.
- 6.3.4 It has obtained all consents, regulatory approvals and permissions and complied with all statutory provisions and requirements affecting the services to be provided under this Agreement.
- 6.3.5 In the fulfillment of its obligation in terms of this Agreement will not infringe the provision of any law or regulation and will not infringe the rights of any third parties.
- 6.3.6 Heirs Tech assures UBA that it will not infringe upon or misappropriate any patent, copyright, trademark, trade secret, or other intellectual property rights of any third party.

7. INTELLECTUAL PROPERTY

- 7.1 All intellectual property rights, including but not limited to methodologies, frameworks, tools, models, software, processes, know-how, and other materials developed, owned, or licensed by Heirs Tech prior to or independently of this Agreement ("Heirs Tech Materials"), shall remain the exclusive property of Heirs Tech.
- 7.2 Subject to Clause 7.1, all reports, roadmaps, templates, analyses, and other tangible outputs expressly prepared for UBA under this Agreement shall, upon full payment of all applicable fees, vest in UBA. For clarity, UBA's ownership of the Deliverables does not extend to any Heirs Tech Materials, which remain the property of Heirs Tech, but UBA shall have a right to use such Heirs Tech Materials as are embedded in the Deliverables solely to the extent necessary to use the Deliverables for its internal business purposes.
- 7.3 All data and information supplied by UBA to Heirs Tech in connection with the Services ("UBA Data") shall remain the property of UBA. Heirs Tech shall have a limited licence to use the UBA Data solely for the purpose of providing the Services.

8. INDEMNITIES

Heirs Tech shall indemnify and hold UBA, its officers and employees harmless, from and against all losses, damages, claims, actions, proceedings, reasonable costs (including legal fees) and liabilities arising that UBA may suffer directly as a result of the gross negligence or willful misconduct of Heirs Tech in the performance of the Services, provided that Heirs Tech's total liability under this clause shall be unlimited.

- 8.1 Heirs Tech shall indemnify UBA against all losses on full indemnity basis against any losses incurred by UBA in connection with this Agreement, which is attributable to Heirs Tech's (including its agents or employees) negligence, fraud, misconduct or breach of its obligations, breach of data or intellectual property or any provisions under this Agreement or any warranty, including any breach occasioned by Heirs Tech's agents, representatives, or personnel's defaults.

- 8.2 Heirs Tech further agrees and undertakes to indemnify UBA against any claims, suit, liability, loss, damage, litigation and expenses, including legal fees and costs suffered by UBA arising from any third-party claim
- 8.3 Neither Party shall be liable to the other, whether in contract, delict, under statute or otherwise (including in each case negligence) for any special, indirect, or consequential loss or damage whatsoever; or any indirect loss of profits, business contracts, anticipated savings, goodwill, or revenue arising under or in relation to the Agreement or any part of it whether or not such Party was advised in advance of the possibility of such loss or damage:

Each Party shall take reasonable steps (reasonable is defined as corrective actions and plans, assigned to individuals within the respective organizations to execute and agreed upon by both parties) to mitigate its losses arising under this Agreement. These corrective actions must be monitored and reported to the other Party until the issue is resolved.

9. CONFIDENTIALITY

- 9.1 Each Party shall, both during the term of this Agreement and thereafter:
- 9.1.1 keep all Confidential Information strictly confidential;
 - 9.1.2 not (and shall ensure that its workers, servants or agents, shall not), without the written consent of the other Party disclose any Confidential Information to a third party, other than to such of its employees, officers and/or independent consultants/advisers as may be required in connection to the performance of that Party's obligations under this Agreement, and only then provided that the relevant Party shall ensure that each such employee, officer and/or independent consultants/advisers shall have been notified of the confidential nature of the relevant information and such employee, officer and/or independent consultants/advisers is subject to confidentiality obligations similar to those imposed under this Agreement;
 - 9.1.3 use Confidential Information only in connection with the proper performance of its obligations under this Agreement; and
 - 9.1.4 endeavor to use a reasonable degree of care to avoid unauthorized dissemination or publication of the data and information disclosed to it by the other Party as it exercises with respect to its own information.
- 9.2 Clause 9.1 shall not apply to any Confidential Information to the extent that it:
- 9.2.1 is or hereafter becomes part of the public domain otherwise than as a result of a breach or default of the receiving Party or of a representative or an Affiliate of the receiving Party; or
 - 9.2.2 is independently arrived at or developed by the receiving Party separate and independent from the disclosure made by the disclosing Party provided that the onus shall at all times rest on the receiving Party to establish that such information falls within the exceptions contained in this clause 9.2; or
 - 9.2.3 is disclosed by the receiving Party to satisfy the order of the court of competent jurisdiction or to comply with the provisions of any law or regulation in force from time to time. Provided that the receiving Party shall promptly notify the disclosing Party of any request by a competent regulatory authority that the Confidential Information be disclosed and shall exercise all

reasonable endeavours to co-operate with the disclosing Party in its effort to protect its interest in relation to the disclosure of the Confidential Information; or

9.2.4 is lawfully obtained from a third party under no restriction on use or disclosure and the receiving Party is not aware that the third party is breaching any obligation of confidentiality relating to the information disclosed; or

9.2.5 is already in the receiving Party's possession prior to disclosure by the disclosing Party and the receiving Party can demonstrate this from its written records.

9.3 Each Party undertakes not to make any announcement or publish any information, photographs articles and/or documents pertaining to the relationship contemplated under this Agreement without the prior consent of the other Party.

9.4 This Clause 9 (Confidentiality) shall continue in force after and despite the expiry or termination of this Agreement, whatever the reason for termination for a period of two (2) years from the date of disclosure of the relevant Confidential Information.

10. FORCE MAJEURE

10.1 If as a result of an event of Force Majeure, any Party ("**Affected Party**") is unable, wholly or in part, to carry out its obligations under this Agreement, then such Affected Party shall not be liable for non-performance of its obligations to the extent such non-performance is due to an event of Force Majeure and neither shall the other Parties be entitled to terminate this Agreement on the ground of such non-performance.

10.2 The Affected Party shall promptly notify the other Parties of the Force Majeure within a reasonable time and in any case not more than three (3) Business Days after the occurrence of the events relied on and shall keep the other Parties informed of all significant developments. Such notice shall give reasonably full particulars of the Force Majeure event, the effects thereof on the due performance of its obligations hereunder, the date of its occurrence, the measures (if any) which the Affected Party has taken or proposes to take to mitigate the impact of the event of Force Majeure and the estimated period of time, which the Affected Party shall require to remedy the effect of the event of Force Majeure.

10.3 The Affected Party shall use all reasonable diligence to remove or overcome the event of Force Majeure as quickly as possible in an economic manner but shall not be obligated to settle any labour dispute except on terms acceptable to it, and all such disputes shall be handled within the sole discretion of the Affected Party.

10.4 If any event of Force Majeure continues for longer than thirty (30) days, the Parties shall discuss in good faith in order to agree on a mutually satisfactory solution having regard to the nature and effects of the event or events of Force Majeure. If Parties fail to reach a mutually satisfactory solution within fifteen (15) days of the commencement of discussions, any Party shall be entitled to terminate this agreement by issuing the Notice.

11. TERMINATION

11.1 Each Party shall have the right to terminate this Agreement by giving at least thirty (30) days written notice of termination to the other Party.

- 11.2 Either Party may terminate this Agreement in writing with immediate effect in the event of the failure of a breach by the other Party, provided that where such breach is capable of remedy, the non-defaulting Party shall provide a written notice to the defaulting Party, giving particulars of the breach and requiring it to be remedied within thirty (30) days (or such further period as Parties may agree) following which, the termination may take effect where there is a failure or refusal to remedy the default.
- 11.3 In the event of termination of this Agreement, howsoever terminated, the Parties shall take all necessary steps to hand over any assets or materials belonging to the other Party in its possession.
- 11.4 Any termination of this Agreement pursuant to this clause shall not affect any accrued rights or liabilities of either party nor the coming into or continuance in force of any provision hereof which is expressly or by implication intended to come into or continue in force on or after such termination.

12. CYBER RISK AND SECURITY INCIDENTS

12.1 Timely notification of Security Incidents/Events.

- (i) Heirs Tech shall notify within 24 hours of the occurrence of a Security Incident and deliver detailed written report to the Bank as soon as reasonably practical, but not more than forty-eight (48) hours upon discovery or notification of any actual, suspected, potential or threatened Security Incident. Security Incident has the meaning given to such term below.
- (ii) Heirs Tech agrees to take reasonable action(s) promptly, at its own expense to the extent the Security Incident was caused by Heirs Tech's breach of its obligations under this Agreement, to identify and eradicate (or to reasonably assist UBA to identify and/or eradicate) any Security Incident caused by Heirs Tech and carry out any recovery exercise reasonably necessary to remedy the impact of such Security Incident, provided that Heirs Tech's liability for costs under this clause shall be subject to the liability cap in Clause 8.6.
- (iii) Heirs Tech shall also provide the Bank with a detailed description of the Security Incident, the type of data that was the subject of the Security Incident, the identity of each affected person, and any other information that the Bank may request concerning such affected persons and the details of the Security Incident within 48hrs.
- (iv) Heirs Tech shall also carry out any recovery actions and notify, at its expense, all affected Persons as required by applicable law or as reasonably requested by the Bank. The content of any filings, communications, notices, press releases, or reports related to any Security Incident ("Notices") must first be approved by the Client prior to any publication or communication thereof to any third party or affected persons, such approval not to be unreasonably withheld or delayed, except that the foregoing shall not prohibit Service Provider from communicating with local, state or federal law enforcement when required to do so by law, or from making disclosures required by applicable law or regulatory authorities within the timeframes mandated by such law or regulation.
- (v) Heirs Tech shall pay for (and reimburse the Bank for reasonable expenses incurred) for all reasonable and documented costs, losses and expenses relating to any Security Incident caused by Heirs Tech's breach of its obligations under this Agreement, including without limitation, the reasonable cost of Notices, recovery or remediation of the effect of the Security Incident, provided that such costs, losses or expenses shall be subject to the limitation of liability provisions set out in this Agreement, except in cases of gross negligence, willful misconduct, or fraud by Heirs Tech.

- (vi) For the purpose of this Agreement Security Incident means any event or circumstances that involve unauthorized access, use, or acquisition of data that compromises the confidentiality, integrity or availability of the Bank's Confidential Information (including any Personal Data) maintained, processed or transmitted by Heirs Tech or any affiliate of Heirs Tech or sub-Service Providers, or the loss or inability to account for any medium or equipment containing the Bank Confidential Information in an unencrypted state or any other circumstances as defined in any applicable local law.
- (vii) Geographic limits on where the Client's data can be stored or transmitted.
- (viii) Heirs Tech shall ensure that the Bank's data and/or any personal data of any individual or entity under its responsibility as may be permitted by the Bank, or acquired or disclosed to, received by or become accessible to Heirs Tech pursuant to this Agreement, are not transmitted or stored in any geographical location outside Nigeria without providing prior written notification to and obtaining prior written permission of the Client, such permission not to be unreasonably withheld where Heirs Tech demonstrates adequate safeguards in compliance with the Nigeria Data Protection Act 2023 and applicable cross-border data transfer requirements.

12.2 Compliance with the Bank's Information and Cyber Security Policies

- (i) Heirs Tech shall abide by and comply with the Bank's Information and Cyber Security policy as provided to Heirs Tech by the and expectations which are but not limited to the following:
- (ii) Compliance to three tier architecture in application and system development.
- (iii) Effective user profiling.
- (iv) Implementation of applications and systems free from vulnerabilities.
- (v) Full compliance to OWASP implementation standards.
- (vi) Enforcement of a maker checker design in application development.
- (vii) Mandatory accommodation of 2 factor authentication in both design and development of applications,
- (viii) Integration to fraud management and monitoring tools
- (ix) Full implementation of segregation of duties.
- (x) Compliance to LDAP authentication design and development.
- (xi) Adherence to other security requirements suitable for the development of specific systems or applications subject to requirements and design document; to be agreed and signed off by all parties involved in the initiatives pre-development
- (xii) Adequate logging and reporting capabilities
- (xiii) Compliance to security best practices

12.3 Destruction of data and records

- (i) Upon termination of this Agreement, Heirs Tech shall return or destroy all confidential information belonging to the Bank which is in its possession or under its control and shall permanently erase all electronic copies of such confidential information according to the Bank's Information & Cyber Security policy and applicable data protection laws, except to the extent Heirs Tech is required to retain such information by applicable law or regulation. If

requested in writing by the Bank, Heirs Tech shall certify in writing, within thirty days, that it has fully complied with its obligations under this clause to the extent permitted by law.

13. DATA PROTECTION

- a) Each Party shall, during the term of this Agreement, maintain adequate physical, technical and organisational measures appropriate to the nature and scope of personal data processed to safeguard and ensure the protection and security of all personal data provided to it under this Agreement from loss, misuse, unauthorized access, alteration, or unlawful destruction. Each Party also undertakes to comply with the provisions of the Nigeria Data Protection Act, 2023, together with the General Application and Implementation Directive, 2025 (GAID 2025), and any amendments, regulations, or guidelines issued thereunder, as well as any other applicable data protection and privacy laws in force in Nigeria.
- b) Heirs Tech shall not use any third party to process personal data or any other information made available to it pursuant to this Agreement without the prior written consent of the Bank, such consent not to be unreasonably withheld or delayed where Heirs Tech demonstrates that the third party has appropriate technical and organizational measures in place and has entered into appropriate data processing agreements in compliance with the Nigeria Data Protection Act, 2023.
- c) Where Heirs Tech utilizes third-party processors to process data or perform its obligations under this Agreement with the Bank's prior written consent, Heirs Tech shall ensure that the processor is under confidentiality and data protection obligations that are no less stringent than those contained in this Agreement and that comply with the requirements of the Nigeria Data Protection Act, 2023.
- d) Heirs Tech shall only process personal data in accordance with the Bank's request or as may be permitted by the Bank in writing.
- e) Heirs Tech shall be liable for the unlawful processing of any data by itself, its third-party processors, agents, and/or any contractor engaged by Heirs Tech to the extent such unlawful processing results from Heirs Tech's breach of its obligations under this Agreement or applicable data protection laws, and hereby undertakes to indemnify and keep the Bank indemnified against any direct loss arising therefrom or in connection thereto,
- f) The Parties shall ensure that they adopt and implement adequate physical and technical measures to guarantee the confidentiality, secure processing and storage of personal data obtained and processed pursuant to this Agreement. Each Party shall conduct periodic audits and assessments of its data security measures and shall provide the other Party, upon reasonable written request and subject to appropriate confidentiality protections, with evidence of compliance with its data security obligations under this Agreement, including relevant security certifications, audit reports, or attestations.

14. ASSIGNMENT

Neither Party shall assign, transfer, charge, encumber, or otherwise deal with the whole or part of this Agreement or its obligations without the prior written consent of the other Party, such consent not to be unreasonably withheld or delayed. Notwithstanding the foregoing, Heirs Technologies Limited may assign this Agreement to any of its Affiliates or in connection with a merger, acquisition, or sale of all or substantially all of its assets upon 30 days' written notice to UBA.

15. **NOTICE**

- 15.1 Any notice or notification required to be given by any of the Parties hereto, shall be deemed to have been sufficiently given if it is delivered by hand or sent by courier to the principal place of business as stated herein of such Party to be notified or to such other address, email address as the Party to be notified shall have earlier given in writing to the other Party.

In case of Heirs Tech:
Heirs Technologies Limited

For the attention of:

Name: Obong Idiong
Address: 226B Ikorodu Road, Palmgrove Lagos
Email address: obong.Idiong@Heirstechnologies.com

with a copy to:

Name: Abiola Jewoola
Attention: Chief Commercial Officer
Email: Abiola.jewoola@heirstechnologies.com

In case of UBA:

For the attention of: Group Head, Information Technology

Name: Kayode Ishola
Address: 57, Marina. Lagos Island.
Email address: kayode.ishola@ubagroup.com

with a copy to:

Name: Amenaghawon Osawe
Attention: Head, IT Service Management
Email: amenaghawon.osawe@ubagroup.com

- 15.2 Any notice sent by hand or by courier shall only be deemed to have been given if the Party receiving the notice shall have signed an acknowledgement of receipt of the notice. Any notice sent by email shall only be deemed to have been given upon receipt of confirmation that the email has been successfully sent.

16. **GOVERNING LAW**

The construction, validity, interpretation and performance of the Parties' respective obligations under this Agreement shall be governed by and construed in all respects in accordance with the Laws of the Federal Republic of Nigeria.

17. **DISPUTE RESOLUTION**

- 17.1 The Parties to this Agreement agree that any dispute arising from or concerning the interpretation of any of the terms of this Agreement ("**Dispute**") will be submitted to two (2) senior executives who shall be senior management staff of the Parties. The executives will promptly meet to explore all possible ways of resolving the Dispute amicably. Any resolution, upon which these executives may agree in writing, will be final and binding on the Parties.

- 17.2 If the executives do not resolve the Dispute within fifteen (15) days after the initial request for a senior executive-level meeting, such Dispute shall be settled by submitting the dispute to a court of competent jurisdiction in Nigeria.

18. MISCELLANEOUS

18.1 Entire Agreement

This Agreement represents the entire terms agreed between the Parties in relation to the Project and Services and supersedes and extinguishes any prior drafts, and all previous contracts, arrangements (including any usage or custom and any terms arising through any course of dealing), representations, warranties of any nature whether or not in writing between the Parties relating to the Project and Services.

18.2 Amendments

No modification or variation of this Agreement shall be effective unless reduced in writing and signed by or on behalf of each of the Parties.

18.3 Non-Compete

Parties hereby undertake to honour in good faith the terms of this Agreement and all dealings between them and to not use any confidential information to which they become privy to under the terms of this Agreement to compete with each another or for any other purpose other than as required to fulfil their obligations under this Agreement. This restriction shall not prevent either party from using general knowledge, skills and experience acquired during the course of providing services.

18.4 **Subcontracting**

Neither Party shall subcontract the performance of any of its obligations hereunder without the prior written consent of the Other Party.

18.5 **Relationship of the Parties**

Nothing in this Agreement and no action taken by the Parties pursuant to this Agreement shall be construed as creating a partnership or joint venture of any kind between the Parties or as constituting either Party as the agent of the other Party for any purpose whatsoever. No Party shall have the authority to bind the other Party or to contract in the name of or create a liability against the other Party in any way or for any purpose.

18.6 **No Waiver**

A failure or delay by either Party to exercise any right or remedy under this Agreement shall not be construed or operate as a waiver of that right or remedy nor shall any single or partial exercise of any right or remedy preclude the further exercise of that right or remedy.

18.7 **Severance**

Each of the provisions contained in this Agreement shall be construed as independent of every other such provision, so that if any provision of this Agreement shall be determined by any court or competent authority to be illegal, invalid and/or unenforceable then such determination shall not affect any other provision of this Agreement, all of which shall remain in full force and effect.

If any provision of this Agreement shall be determined to be illegal, invalid and/or unenforceable, but would be legal, valid and enforceable if amended, the Parties shall consult together in good faith and agree the scope and extent of any modification or amendment necessary to render the provision legal, valid and enforceable so as to give effect as far as possible to the intention of the Parties as recorded in this Agreement.

18.8 **Remedies**

Each Party acknowledges and agrees that if it materially breaches the warranties, representations, indemnities, covenants, agreements, undertakings, and obligations (for the purposes of this Clause referred to as the “**Agreed Terms**”) on its part contained in this Agreement or any other agreement entered into pursuant to it, and fails to remedy such breach within thirty (30) days of written notice, damages may not be an adequate remedy in which case the Agreed Terms shall be enforceable by injunction, order for specific performance or such other equitable relief as a court of competent jurisdiction may see fit to award.

18.9 **Effect of Pre-Agreement Performance**

All actions taken by either Party in fulfillment of the obligations outlined in this Agreement, which occurred prior to the Effective Date of this Agreement, shall be deemed to have been performed pursuant to this Agreement and shall be binding on each Party as if such actions had been taken after the execution of this Agreement.

18.10 **Counterparts**

This Agreement may be executed in any number of counterparts but shall not be effective until each party has

executed at least one counterpart. Each counterpart when executed shall be an original, but all the counterparts together shall constitute one document.

IN WITNESS WHEREOF the Parties by their duly authorized representatives have signed this Agreement in the manner below.

Signed for and on behalf of
HEIRS TECHNOLOGIES LIMITED



NAME: Obong Idiong
AUTHORIZED SIGNATORY

DATE:

Signed for and on behalf of
UNITED BANK OF AFRICA PLC

NAME:
AUTHORIZED SIGNATORY

DATE:



NAME: Oye bimpe Megbope
AUTHORIZED SIGNATORY

DATE:

NAME:
AUTHORIZED SIGNATORY

DATE:

SCHEDULE 1

SCOPE OF WORK (8 weeks)

1. The scope of work of the Heirs Tech under this Agreement shall be as follows:

(a) Assessment and Diagnostics

- Review UBA's historical and current IT and technology-related costs covering but not limited to:
 1. Software Licensing and Subscriptions: Audit of software application licenses, enterprise agreements, and SaaS subscriptions to identify underutilized assets, reclaim unused licenses, and optimize spending.
 2. Cloud Infrastructure & Subscriptions: Assessment of cloud service providers (IaaS, PaaS), subscription models, and resource utilization to identify cost-saving opportunities through rightsizing, reserved instances, and elimination of waste.
 3. Fixed Asset Management: Review of capital assets including on-premises servers, data center infrastructure, and the total cost of ownership for endpoint devices (e.g., desktops, laptops, mobile devices).
 4. Communication Infrastructure: Analysis of network and telecom expenses, including MPLS circuits, broadband internet services, voice communications, and dedicated data links.
 5. Point-of-Sale (POS) Ecosystem: Evaluation of the POS hardware and software footprint, deployment costs, support models, and maintenance contracts to identify potential for consolidation and efficiency gains.
 6. IT Support Services: Assessment of the efficiency and cost structure of IT support, encompassing both internal IT staff resources and outsourced or managed service provider (MSP) contracts.
 7. Computer Consumables of Uba
 8. Repairs and Maintenance
 9. Outsourcing Services
 10. Telephone Bills
 11. Training
 12. Inconvenience Allowance and Others
- Benchmark UBA's IT cost profile against leading practice and industry peers.

(b) Identification of Optimisation Opportunities

- Analyse cost categories to identify redundancies, inefficiencies, and opportunities for cost takeout.
- Develop hypotheses and validate potential savings levers, including:
 - renegotiation of vendor contracts,
 - consolidation of software licenses,

- rationalization of infrastructure and hardware,
- adoption of cloud and digital automation solutions, and
- re-design of IT operating models.

(c) Roadmap Development

- Develop a detailed cost optimisation roadmap setting out:
 - recommended short-, medium-, and long-term initiatives,
 - estimated savings potential,
 - business case for implementation, and
 - prioritisation of high-value levers.

(d) Implementation Support

- Provide advisory and support in implementing identified initiatives, including vendor negotiations, contract reviews, and process redesign.
- Support UBA in executing digital automation, cloud adoption, or infrastructure rationalisation strategies.
- Facilitate change management and knowledge transfer to UBA's teams.

(e) Reporting and Monitoring

- Establish a framework for ongoing monitoring of cost optimisation initiatives.
- Provide regular reporting on savings achieved against the roadmap.
- Support UBA in tracking and verifying realized savings.

2. Deliverables

In the course of providing the Services, Heirs Tech shall prepare and deliver the following outputs to UBA:

1. Initial Diagnostic Report – setting out baseline IT cost categories, spend analysis, and key cost drivers. The accuracy and completeness of this report shall be subject to and dependent upon the availability, accuracy, and completeness of information provided by UBA.
2. Optimisation Hypotheses Paper – outlining preliminary cost-saving opportunities and potential levers.
3. Technology Cost Optimisation Roadmap – a detailed plan with prioritised initiatives, savings projections, and implementation timelines.
4. Business Case & Monitoring Framework – including financial impact analysis, benefits tracking model, and governance recommendations.
5. Implementation Support Reports – periodic reports summarising initiatives executed, savings realised, and next steps.
6. Final Consolidated Report – summarising total verified cost savings achieved, lessons learned, and sustainability measures for ongoing optimisation.

SCHEDULE 2
PAYMENT TERMS

Fees

Item Description	Period (months)	Total Amount in Naira
Assessment & analysis of technology costs and optimization roadmap development	8 weeks	40,000,000.00
Discount applied (100%)		40,000,000.00

For the avoidance of doubt, Heirs Tech, will provide the service of Assessment & analysis of technology costs and optimization roadmap development and the fees captured above is hereby waived.

Implementation Fee

Fees for the implementation of the roadmap will be billed in line with the schedule below:

Item Description	Approved %
Up to N100 million	10%
Over N100 million and N200 million	7.5%
Over N200 million	5%